

1.

CASE #	CASE NAME	HEARING NAME
CVME2512487	SWAINE VS SMITH	MOTION TO STAY CIVIL ACTION (OR IN THE ALTERNATIVE, STAY DISCOVERY) PENDING RESOLUTION OF CRIMINAL PROCEEDINGS

Tentative Ruling: Deny without prejudice. Continue the TSC to March 23, 2027.

Defendants provide no valid justification to seek an indefinite stay on the pending civil litigation. Neither the Court's inherent powers to manage and control its court proceedings nor the cases cited by Defendants warrant a finding that they are entitled to a stay of proceeding in the civil action while the criminal action of one Defendant is pending. "[W]hen both civil and criminal proceedings arise out of the same or related transactions, an objecting party is generally entitled to a stay of discovery in the civil action until disposition of the criminal matter. [Citations.]" (*Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690.) When deciding whether a stay should be granted, the Court must consider the particular circumstances and competing interests involved in light of the 5-factor framework of *Keating v. Office of Thrift Supervision* (9th Cir. 1998) 45 F.3d 322.

As to Defendant Ashley Smith who is facing criminal prosecution there is no indication that her constitutional rights under the Fifth Amendment are yet implicated to justify an indefinite stay on either the entire action or a limited accommodation of staying only the discovery directed against her. There is no indication that Ashley has yet invoked her privilege against self-incrimination in response to a specific question asked in discovery for the Court to ascertain whether Plaintiffs are seeking information that might tend to incriminate Defendant Ashley Smith. The motion is denied without prejudice to allow Smith to refile once such rights are implicated.

As to Defendant Russell Smith, he is not a criminal defendant whose Fifth Amendments rights are implicated in the criminal case of Ashely Smith arising out of the same incident which is the subject of this civil litigation. Hence, the *Keating* framework has no application as to Russell Smith which has been crafted to balance the competing interests when a criminal defendant is forced to choose between testifying in a civil matter and asserting her Fifth Amendment privilege.

2.

CASE #	CASE NAME	HEARING NAME
CVME2512605	SHEPPARD VS SERAT	MOTION TO STRIKE 1 ST AMENDED COMPLAINT

Tentative Ruling: Grant in part to strike only the following portions of the First Amended Complaint ("FAC") concerning punitive damages as requested by Defendant as referenced in page 1, line 26 through page 3, line 2 in the notice of motion:

Pg. 3, Ln. 11: "recklessly and/or intentionally"

Pg. 4, Ln. 4-5: "The despicable nature of Defendants' behavior is reflected by the fact...."

Pg. 4, Ln. 10, 11-13: "The aforesaid acts and/or omissions of" and "willful and wanton in that said Defendants demonstrated a conscious and deliberate disregard of the rights, safety, and interests of others by willfully...."